

Kotikalapudi Srinivas Alias Srinivas vs K.Gayathri Durga Jayanthi on 5 March, 2020

Author: M.Venkata Ramana

Bench: M. Venkata Ramana

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

HONOURABLE SRI JUSTICE M. VENKATA RAMANA

CIVIL REVISION PETITION No. 95 of 2020

Between:

Kotikalapudi Srinivas @ Srinivas,
Son of Late Venkatesam, 35 years,
R/o. 3rd Lane, Plot No. 98/A, P.N.Colony,
Srikakulam Town, Srikakulam District.

... PETITIONER

AND

K. Gayathri Durga (Jayanthi),
W/o. Srinivasa Rao, D/o. Surya Prakash Rao,
Aged about 30 years, R/o. D.No.8-8-896,
Ganesh Nagar, V.T.Agraharam, Vizianagaram,
Vizianagaram District.

... RESPONDENT

DATE OF JUDGMENT PRONOUNCED : 05.03.2020

SUBMITTED FOR APPROVAL:

HONOURABLE SRI JUSTICE M. VENKATA RAMANA

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|----|---|--------|
| 1. | Whether Reporters of Local Newspapers
May be allowed to see the order? | Yes/No |
| 2. | Whether the copy of order may be
Marked to Law Reporters/Journals? | Yes/No |
| 3. | Whether His Lordship wish to
See the fair copy of the order? | Yes/No |

M.VENKATA RAMANA,J

MVR,J

CRP No. 95 of 2020

2

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Vizianagaram District.

... RESPONDENT

! Counsel for appellant : Mr. S.R. Sanku

^Counsel for Respondents : Mr. Ram Mohan

<GIST :

>HEAD NOTE:

? Cases referred:

MVR,J

CRP No. 95 of 2020

3

HON'BLE SRI JUSTICE M. VENKATA RAMANA

CIVIL REVISION PETITION No. 95 of 2020

ORDER:

This Civil Revision Petition is directed against the order of the Court of learned Family Judge-cum-III Additional District Judge, Vizianagaram in I.A.No. 168 of 2019 in FCOP No. 70 of 2016 dated 06.12.2019.

2. The petitioner is the husband of the respondent. He instituted a petition for grant of divorce dissolving the marriage of himself and the respondent.

3. The ground urged by the petitioner for divorce is under Section 13(1)(iii) of the Hindu Marriage Act. The respondent resisted the petition refuting the allegations made against her, particularly with reference to application of the above provision, for grant of divorce.

4. It is now informed that evidence on behalf of the parties has already been let in and that arguments have already been submitted by the parties in the divorce application itself.

5. At that stage, on behalf of the petitioner, a petition under Section 45 of the Indian Evidence Act was filed, requesting to send the respondent to a panel of Psychiatric experts for examination, either at Government Headquarters Hospital, Vizianagaram or King George Hospital, Visakhapatnam, appointing an Advocate commissioner, subject to their availability. The reason assigned by the petitioner for such purpose is that the respondent is immature and of unsound mind, who is misfit to lead family life. There are many other allegations attributed by him to the respondent in this respect, which are not necessary to consider at this stage. However, according to him, in order to support his claim MVR,J against the respondent, she be subjected to examination by an expert panel of psychiatrists.

6. The respondent resisted this attempt of the petitioner filing a lengthy counter in the trial Court denying each and every allegation. She referred to medical examination, she was subjected to by Doctors at Srikakulam, Visakhapatnam including by a gynaecologist and thus denied the necessity of sending her for such an examination.

7. Considering the material and contentions of the parties, the learned trial Judge by the impugned order dismissed the petition.

8. This order is now questioned in this civil revision petition.

9. Sri S.R.Sanku, learned counsel for the petitioner, strenuously contended that the approach in the trial Court by the petitioner, resorting to Section 45 of the Indian Evidence Act appears improper. Learned counsel referred to various provisions of the Medical and healthcare Act, 2017, particularly laying emphasis on the effect of Section 3(5) of this Act relating to determination of mental illness and ultimately subjecting to declaration as such by a competent court. A reference is also made in respect of several Authorities required to be constituted either by the Central Government or the State Government, including Mental Health Establishments, while contending that mental Health Review Boards are required to be constituted by the State in terms of Section 73 of this Act. Thus referring elaborately of such provisions, learned counsel contends that in the given facts and circumstances of the case, mere reference to a panel of psychiatrists is not proper and reference if at

all be made, shall be to an Establishment covered by the Mental and Healthcare Act, 2017. A reference is also made to the deposition of the respondent as R.W.1 in the trial Court to explain and demonstrate her nature, particularly from the MVR,J statements elicited in the cross-examination, which according to the learned counsel, clearly lead to understand her mental status.

10. Sri Ram Mohan, learned counsel for the respondent, contended with equal vehemence referring to objects and reasons of the Mental and Healthcare Act, 2017 pointing out that it cannot be made applicable in the given facts of the case and elaborating that it is an enactment relating to certain welfare measures of those suffering from mental illness, as defined under the Act itself and predominantly with reference to their rehabilitation. Referring to nature of the ground for divorce urged by the petitioner against the respondent as well as the evidence let in by the parties, the learned counsel contended that there is no necessary or justification to direct the respondent to subject herself to an examination by an expert panel of Psychiatrists. It is also contended by the learned counsel that ultimately it is for the learned trial Judge to decide as to the ground urged by the petitioner basing on the evidence vis-a-vis the relief and it cannot be further subject matter of any examination at this stage in this regard or through a panel of experts.

11. Against this backdrop, now, the point that emerged for determination is- "whether the petitioner is justified in requesting the trial Court to send the respondent for examination by an expert panel of Psychiatrists to know her status, and to fall within the ambit and scope of Section 13(1)(iii) of the Hindu Marriage Act?

POINT:-

12. It is pertinent to note that both the parties produced certificates issued by Doctors, who admittedly attended on the respondent either at the instance of the petitioner or at the request of the respondent herself. It is also clear from the contentions now addressed by the learned MVR,J counsel that none of those doctors was examined in the course of enquiry in the Family Court. Therefore, in the light of the ground urged by the petitioner against the respondent for grant of decree of divorce, what is essentially to be looked into is, evidence on record and the proof of facts. When such basic requirement is made available, ultimately it is for the learned trial Judge to decide the matter.

13. Reference to the Mental Healthcare Act, 2017, in the circumstances, though passionately urged by Sri SR Sanku, learned counsel for the petitioner, elaborately discussing its import as well as effect in all the matters, where questions relating to mental illness or mental health need to be considered in the matters before the Courts, a careful consideration of the purpose and object in bringing out this enactment, leads to a different inference than what is sought to be made out. The Act itself speaks what it provides for. In its preamble in this respect it is stated as under:

"An Act to provide for mental healthcare and services for persons with mental illness and to protect, promote and fulfil the rights of such persons during delivery of mental healthcare and services and for matters connected therewith or incidental thereto.

WHEREAS the Convention on Rights of Persons with Disabilities and its Optional Protocol was adopted on the 13th December, 2006 at United Nations Headquarters in New York and came into force on the 3rd May, 2008;

AND WHEREAS India has signed and ratified the said Convention on the 1st day of October, 2007.

AND WHEREAS it is necessary to align and harmonise the existing laws with the said Convention."

14. Relevant is also to consider the definition of "Mental healthcare" in Section 2(o) of this Act for the present purpose.

"(o) "Mental healthcare" includes analysis and diagnosis of a person's mental condition and treatment as well as care and rehabilitation of such person for the mental illness or suspected mental illness."

MVR,J

15. What is "mental illness" is also stated in Section 2(s) of the Act.

"(s) "mental illness" means a substantial disorder of thinking, mood, perception, orientation or memory that grossly impairs judgment, behaviour, capacity to recognise reality or ability to meet the ordinary demands of life, mental conditions associated with the abuse of alcohol and drugs, but does not include mental retardation which is a condition of arrested or incomplete development of mind of a person, specially characterised by sub-normality of intelligence."

16. Section 3 of this Act speaks out determination of mental illness. Sub Section (5) of the same states that the determination of a person's mental illness shall alone be not implied or be taken to mean that the person is of unsound mind unless he has been declared as such, by a competent Court.

17. A limited consideration of this provision leaves no manner of doubt that mere determination of an individual's mental illness and if any, cannot permit or deem to hold that he is of unsound mind.

18. Therefore, when these provisions are taken into consideration, particularly the purpose and object in bringing out this enactment when given regard to, it cannot be stated that it requires consideration in the presence circumstances.

19. Sri S.R.Sanku, learned counsel for the petitioner, also referred to the obligation of a family Court in terms of Section 12 of the Family Courts Act, where in any suit or proceedings liberty is given to Family Court to have assistance of medical healthcare experts. There cannot be two opinions about application of this provision, in deserving and decisive circumstances.

20. Nonetheless, as stated supra, ultimately it is for the trial Court to take into consideration the material and evidence on record to MVR,J determine the status of the parties before it and if they fit in and stand within the ambit and scope of the ground on which relief is sought.

21. Copious reference is made to the deposition of R.W.1 and particularly her statements in her cross-examination. It is an effort made by the learned counsel for the petitioner to impress upon the application of The Mental Healthcare Act. However, these statements clearly fall within the zone of consideration and evaluation for the learned Family Judge in finally determining the manner. This Court cannot express any opinion on such statements, particularly having regard to the scope of a petition filed under Article 227 of the Constitution of India.

22. Therefore, in the circumstances, when it is ultimately for the parties to make out the ground or otherwise on which they have entered upon, pursuing the matters before the learned trial Judge and further finding no justification to interfere with the orders under revision, in the given facts and circumstances of the case, the Civil Revision Petition has to be dismissed.

23. In the result, the Civil Revision Petition is dismissed. Any opinion expressed in this order shall not influence the final determination of the matter by the learned trial Judge. There shall be no order as to costs.

All pending miscellaneous petitions, if any, shall stand closed and interim orders, if any, shall stand vacated.

M. VENKATA RAMANA, J Dt: 05.03.2020 Note: L.R. copy B/O RR
MVR,J HON'BLE SRI JUSTICE M. VENKATA RAMANA CIVIL REVISION PETITION No. 95 of
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